

Council Meeting
April 10, 2019
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The Claremont City Council held a meeting on Wednesday, April 10, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

Members of the Council absent were:

At-Large Councilor Abigail Kier

AGENDA CHANGES

Mayor Lovett said that item 10D Ordinance 567 Food Truck Policy, will not be ready for the first reading because legal counsel came back with some questions with regards to the Policy Committees recommendations.

REPORT OF SECRETARY

It was agreed on that the council will wait until Ms. Russell is back before approving the Minutes of February 13, 2019 and February 27, 2019 as she was the one that took them.

A motion was made by Mr. Damren and seconded by Mr. O'Hearne to accept the minutes of March 13, 2019 City Council meeting as amended.

Mr. O'Hearne said on page 14, please change Acting Clerk to the Council to City Clerk

Mayor Lovett said on page 11, Food Truck Policy Recommendation, the last sentence should be forward all information to legal counsel and CC the City Manager.

Voice vote: motion carried 8-0

A motion was made by Mr. Pope and seconded by Mr. Stone to accept the minutes of March 21, 2019 City Council meeting as amended.

Mr. O'Hearne said on page 5, please change Acting Clerk to the Council to City Clerk

Voice vote: motion carried 8-0

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to accept the minutes of March 26, 2019 City Council meeting as amended.

Mr. O'Hearne said on page 3, please change Acting Clerk to the Council to City Clerk

Voice vote: motion carried 6-0, with 2 abstaining (Mr. Damren & Mr. Koloski)

MAYOR'S NOTES

Mayor Lovett presented Maggie Monroe-Cassel with a Proclamation as April is Child Abuse Prevention Month.

Awards and Recognition

Mayor Lovett stated George Lawrence Miller, recently retired after working with the Department of Public Works for 20 years, she read the proclamation being presented to him.

Mayor Lovett presented a proclamation to Brent Wilmot of the Claremont Police Department for his recent graduation from the FBI National Academy on 03/15/2019. Chief Chase also was there with Mayor Lovett to present the proclamation. Chief Chase said "I'm very proud of him, happy he went and I'm glad he's back."

Congratulations to Evelyn Cormier who was recently selected as one of the 16 finalists in the American Idol Competition.

Thank you to Arrowhead Recreation Association for all the work they did to prepare the lodge for Governor Sununu's visit this past Monday. The Governor had not visited Arrowhead since 2008, and was quite surprised by all that it had to offer. Arrowhead has become a destination point for the region, and none of this would be possible without the hard work of these volunteers.

The joint City Council/School Board meeting will be held on Monday, May 6th at 6:30pm at the Sugar River Valley Regional Technical Center.

Claremont has been chosen to host this year's Special Olympics Regionals Meet and we are looking for volunteers to help with the event. It will be held on Saturday, May 4th, events will take place at the Claremont Savings Bank Community Center and Monadnock Park. Volunteers will be required to attend a training, anyone interested please contact Claremont Parks & Recreation Director, Mark Brislin.

On Saturday, April 27th at 7:00pm The Locals will perform at the Claremont Opera House. Magician Dylan Tenney and Friends will perform a music, magic or more concert that will support the local arts in our community.

New England Classical Academy will be having their 10th Annual Spring Production show this weekend. Cyrano de Bergerac shows will be held on Friday, April 12th at 7pm; Saturday, April 13th at 2pm and Sunday, April 14th at 2pm.

Mr. Pope noted that April is Donate Life Month. You can update Organ Donation Cards at the DMV and local hospitals.

CITY MANAGER'S REPORT

Mr. MacLean stated that we continue to work on the employee recognition program, it is a work in progress.

He took a tour of the Claremont Housing Authority, met with the Executive Director. I am aware of several vacancies for the Claremont Housing Authority Committee.

Stated that he and Mary Walter continue to work on the Cable franchise agreement and have scheduled meetings accordingly.

Solar Mills presentation will be coming up in 2 weeks.

We continue to work on 139 Main Street and the adjacent property, 143 Main St that shares the wall. We expect to have something at the next council meeting.

The Rail Trail projects continue to be worked on by the Parks & Recreation Director.

Right to know requests still an issue for us, we are thinking of working on a policy, and biggest concerns is there is only one person in the manager's office.

Sober housing is still an issue in the county.

The JSL building will be going out with request for bids.

Mayor Lovett asked Director Brislin to speak about the trails at Moody Park due to mud season. He stated that some of the single track trails will be closed. He also stated that we have a decided group that work on the trails and there are plans this year to add more signage. Trying to come together and sort this out.

Mayor Lovett asked manager to speak about DPW being over budget on the winter maintenance line. Mr. MacLean stated this is not uncommon and Vic St. Pierre is speaking with Finance Director Mary Walter and myself to resolve these issues.

Mr. Pope said there are FCC rules that may go into effect that may affect the local channels. He asked the manager to keep the council up to date on any information he receives.

Mr. Damren said he believes currently cable providers are not allowed to deduct in-kind types of services fee now and with the new FCC rule they would be allowed to deduct said fee.

Mayor Lovett stated maybe the council should consider submitting a memo to their Federal Delegation regarding this matter.

Mayor Lovett read in the Librarian's report the installation of the air conditioning has already be scheduled to begin April 18th.

APPOINTMENT TO BOARDS AND COMMITTEES

Zoning Board of Adjustment

A motion was made by Mr. Damren and seconded by Mr. Stone to appoint Michael Lemieux to seat A3 of the Zoning Board of Adjustment.

Voice vote: motion carried 8-0

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to re-appoint Carolyn Towle to seat A1 of the Zoning Board of Adjustment.

Voice vote: motion carried 8-0

Mayor Lovett stated they received 8 applications for the City Manager Search screening committee.

CITIZEN'S FORUM

Maggie Monroe-Cassel thanked the Mayor for the proclamation. She said activities taking place in April are the screening of 2 films. The first is Screenagers: Growing Up in Digital Age, airing on April 16th 6:30pm-8:30pm at Stevens High School. The second one is No Small Matter, Need to Invest in affordable Daycare and child care development will be shown on April 18th 6:00pm-7:30pm, at the Recovery Center located at 1 Pleasant St.

OLD BUSINESS

City Manager Search Update

Mr. Damren said he would be looking for a vote from the council on the draft of the community survey and the draft of selection criteria for citizens to be on board. They were just finished last night so unable to make it into the council packet.

A motion was made by Mr. Koloski and seconded by Mr. Pope to suspend council rules.

There was some discussion regarding notices of meetings being held by the three councilors that have been appointed to the search committee. Mayor Lovett said the three councilors appointed needed to take the lead on the information gathering process.

Mayor stated there has to be some flexibility. Decisions are not being made regarding the City Manager search itself, just to get the committee formed.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - yes

Damren - yes

Zullo - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 7-1

Mr. Damren handed out copies of the committee survey, has 9 questions asking to rank highest to lowest.

- o Minimum of 3 years of experience as a city manager or equivalent
- o Proven experience in managing community development and/or redevelopment
- o Experience with municipal finance, budgeting and forecasting
- o Successful experience with collective bargaining agreements and negotiations
- o Good communicator with community groups
- o Must be able to communicate well and work with an elected city council
- o Ability to represent the community positively with state and county governments
- o Experience with seeking and successfully obtaining federal and/or state grants
- o High ethical standards

The idea would be to give the survey tomorrow to the Chamber of Commerce Director Elyse Crossman. He will work with city to get it on the website, also put them in the Library and at the Community Center and Senior Center.

Mr. Damren said tonight he is looking for approval on the committee survey and for the 3 councilors on the committee to disburse it.

Mr. Koloski said he is not sure why the last question is on the survey; we would not want anyone that does not have a high ethical standard. Also hopes the survey get access to the city's business email list as not all businesses are members of the Chamber of Commerce.

It was agreed that the last question (high ethical standard) on the survey will be removed.

Mr. Pope asked if there will be an area for comments and maybe add a resident/non-resident check box.

It was the consensus to change rank order to agree/strongly agree on the survey.

Mr. Damren had another handout which was the Criteria for selection of committee members of the search committee, 4 spots available.

- School Board
- County Government
- Claremont Business Community
- Community member with long association with city and a broad range of community experience. May include, but not be limited to, such activities as volunteerism and elected office.
- It will be a plus if members have experience in hiring personnel at an executive level

Mr. Stone thinks this is too restrictive, does not give us the diversity we are looking for.

Mr. Pope believes the council should add these four seats to the committee, School Board, County Government, Claremont Business Community, Community Member with long commitment. Mr. Koloski agrees.

Mr. Zullo, Mr. Stone, Mr. O'Hearne and Mr. Damren stated they are not in favor of increasing the number. Stated the council need to stick to the process we have elected and the keep the committee relatively small.

Mayor Lovett reminded council members that she said at earlier meetings that if we decided to go down this road, we need to follow the model that was given to us by County Commissioner Barrette and what they used. Also need to ensure the 4 people of the community are cross sections from these groups.

A discussion continued about the process that will be used for choosing the search committee.

Mayor Lovett called a break and said on the other side of the break she will be asking: Do we want to continue this discussion tonight? Do we want to call another meeting? Move council priorities to either next meeting or end of meeting.

A motion was made by Mr. Zullo and seconded by Mr. Damren to continue this discussion at the end of the meeting.

Voice vote: motion carried 8-0

Council Priorities (tabled from last meeting)

A motion was made by Mr. Zullo and seconded by Mr. Damren to move Council Priorities to the end of the meeting.

Voice vote: motion carried 8-0

NEW BUSINESS

ATV Club request signed permission for 2019 Trail Use

Scott Little, Trail Administrator of Sullivan County ATV Club, we come every year to ask permission to use city owned land and class VI highways. Last year it was suggested that we ask for a 2-year approval.

A motion was made by Mr. Damren and seconded by Mr. Stone approve the request for a 2-year period of time.

Voice vote: motion carried 8-0

Mr. Little said the ATV club would like to request permission for about 3 Sunset Guided Ride Events. As you know we have a half an hour after sunset, but would go maybe a little bit after that. We have a lot of interest in this, we would notify the Police Department and Fish and Game.

Chief Chase said he does not have a problem with this, we are lucky to have a very responsible club. My only suggestion would be to notify the residents of those areas Cat Hole Road and Veterans Park Road with a letter or notice.

Mr. Norman Blouin, Ward 3 stated he has nothing against the ATV club but maybe they should hold off between snow season and May 15th, to give the roads a chance to dry out.

Mr. Little said the trails by law are not open until May 23rd.

Mr. O’Hearne said in looking at the agenda it only mentions permission for trail use, does not mention the Sunset riding, maybe we should discuss this at the next council meeting.

Mayor Lovett said the agenda does say trail use which the sunset ride would be, and feels it was noticed properly and that it could be approved tonight.

Mr. Pope said he has no problem with it just does not want them to get bite by a procedural error.

A motion was made by Mr. Pope and seconded by Mr. Stone to put the Sunset Ride request by the ATV Club on the May 8th agenda.

Voice vote: motion carried 5-3 (Mr. Damren, Mr. Koloski and Mayor Lovett opposed)

Terri Lambert, Club Secretary said with the State’s club incentive program our membership grew from 57 to 370 members for 2018 throughout New England. The ATV club would like to thank Chief Chase & the Claremont Police Department for patrolling the trails & roads for us using the Fish and Game Law Enforcement Grant they received last year. She also advised on the rail trail situation, that in March 2016 the City of Claremont submitted a waiver request to the Federal Highway Administration, to gain permission for the 1.8 section of rail trail in front of Market Basket. In July 2016 the Federal Highway responded stating that the request was incomplete and would like to see more evaluation and considerations by the city before rendering a decision and possibly a see a submission of a revised waiver request. The club meet with the former city manager in February 2018 and was on tap to get this work done but it has since fallen by the wayside.

Mr. MacLean stated there is work being done with this.

Accept CFMA gift of benches for Broad Street Park

Terry Gould, a member of the Claremont Farmer’s Market Association said back in 2004 five women got together; Cindy Porter, Liza Draper, Kathleen Connair, Marilyn Nagy and Ruth Preston, and formed the CFMA. And from 2004 until 2017 there had been a rotating group of volunteers that made the market run. The CFMA has quietly sat on the sideline for the last year to make sure the market would continue under the city, and it has done very well. To help commemorate the hard work done by so many people the CFMA would like to donate to the city 2 or 3 park benches.

Mr. Brislin thanked Mr. Gould very much for the donation and said he appreciated all of the work all of the volunteers have done. He stated Opening Day for the Farmer’s Market will be on May 25th, at Broad Street Park hours are 10:00am-1:00pm and they are still looking for vendors.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone that the Claremont City Council hereby accepts with sincere appreciation a gift of park benches for CFMA for Board Street Park.

Voice vote: motion carried 8-0

Resolution 2019-22 Accept and Expend funds Airport Master Plan

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City needs to update the Master plan for the Claremont Municipal Airport (the “Airport”); and

WHEREAS the purpose of the update is to revise the existing facilities, forecasts, facility requirements, and development alternatives as identified in the 1998 Airport Master Plan in addition to preparing an implantation schedule that includes cost estimates and environmental impacts for the recommended improvements and;

WHEREAS the City has been approved and would now like to accept and expend said total grant funds in the amount of \$203,000 with \$182,700 coming from the Federal Aviation Administration (the “FAA”) (Project No. SBG-02-12-2019), \$10,150.00 coming from the New Hampshire Department of Transportation (NHDOT) and local matching funds from the City in the amount of \$10,150;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the FAA grant (Project SBG-02-12-2019 Airport Master Plan Update) in the amount of \$203,000, including monies from the New Hampshire Department of Transportation; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$10,150, as the City’s share of the project, to be taken from the Airport Reserve Account (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution *(2/3 Vote Required)*

A motion was made by Mr. Damren and seconded by Mr. O’Hearne to adopt Resolution 2019-22 Airport Master Plan Update.

Mr. Damren read the resolution into the record.

Fire Chief Bryan Burr stated it has been over 20 years since the last update, we need to know certain things for the future of the airport. It is a 9-point process from study design to final report. One of the points is to have a public hearing, and after speaking with Director Nancy Merrill, there will be a public hearing at a planning board meeting. The Airport reconstruction plan is coming in the next couple of years and the master plan has to be done before that. He did say he is not sure when the public information meeting will be, but they will be sure to give plenty of notice.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 8-0

Ordinance 567 Food Truck Policy- first reading

Mayor Lovett said as noted under agenda changes this is not ready. There were some additional questions from legal counsel and there has not been enough time for the policy committee to meet again and address those questions with city staff and provide the answers. Hoping this will be on the April 24th agenda. The Policy committee is meeting tomorrow at 6pm at the Visitors Center.

Budget Meetings – Set Dates

Mr. MacLean stated the council will receive a proposed budget for their review and consideration by May 2nd. He stated he would like to recommend that they have the budget session on a Saturday, as has been done in the past, thinking May 11th or May 18th starting at 9:00am and will be done by 3:30.

It was agreed to have the budget hearings on May 11th.

Earth Day Initiatives

Mayor Lovett said we are trying to do as we did last year and work in identified hot spot areas. The Conservation Commission will be working on the boat landing. DPW will supply gloves, vests and bags. Earth day this year is the day after Easter which is a Monday. The idea is for councilors to gather a group of people and work on a hot spot in your ward. This is a community building event. Please see the list and partner with organizations or people within your neighborhood. Also coordinate with DPW so they know when to pick up the trash.

Mr. Brislin said on April 19th Stevens High School is doing their annual volunteer day, they go throughout the city. Also, Hypertherm is helping at Moody Park again this year.

Mayor Lovett noted April 20th is tire day at the Transfer Station. This is the time for residents, not businesses, to dispose of unwanted tires at no charge.

Also, Leaf pick up is the week of April 28th.

Mr. Koloski asked if we have to fill out liability forms, like last year. Mr. MacLean stated he is not prepared to answer this tonight; he will email the answer to the council.

Chief Chase said he will send out the safety bulletin he put out last year about hazardous materials.

New Council Rule – Legal Counsel Correspondence

A motion was made by Mr. Stone and seconded by Mr. O’Hearne to table this to the May 8th meeting.

Voice vote: motion carried 5-3 (Mr. Koloski, Mr. Pope and Mayor Lovett opposed)

Back to City Manager Update

Francis Gauthier Ward 1, said don’t sandbag that process, continue with the process you elected.

Mr. Blouin Ward 3, told the council they really need to read the resumes they receive. As far as public meetings, there should not be any, the committee needs to pick the candidates and bring that recommendation to the council. Also please put a speaker in the back of the room.

Joe Osgood Ward 1, feels the survey should have Name & Ward on it and agrees with the 1 to 9 ranking. The 3 council members that were appointed by the council have been doing a very good job and have had good meetings. I was discouraged to see a month for citizens to apply to be on the committee, should have been making that decision at this meeting.

Mr. Damren said they will eliminate the question of high ethical standard; add 2 boxes to check off resident or non-resident; add space for other comments; will remove the 1-9 rankings and replace with agree, strongly agree, neutral, disagree, strongly disagree; and add name & ward if they are a resident.

It was agreed that the council would like to have a special meeting to pick the members of the search committee.

18th on 5pm – last day for applications

Proposed special meeting for April 23rd for purpose of selecting search committee members. 2nd Stone

Mr. MacLean has canvassed the staff of department heads, he has 3 potential candidates for the two positions. 23rd at 630 pm

Francis Gauthier – this is a poor community, at the rate you want to fire people we need to, the golden parachute has to end, I wish this council would address this issue.

Council Priorities –

Damren stated leave it on the table

COMMITTEE REPORTS

Pope – Energy Committee is going to have a newsletter coming out, monthly thing.

Gary Dickerman Conservation Committee– next Thurs. 4/18 at 6; Doug from DES making presentation on invasive plants in NH

Planning committee met on Monday, finalized capital improvement plan will come shortly to council for adoption.

Fee schedule will be will have to go before the Finance Committee for next week.

Koloski asked about how we are the only communities that doesn't list airport fees in our fee schedule and will it be added in.

FUTURE AGENDA ITEMS AND DIRECTIVES

Council Funds, people over the years have said they cannot hear. Koloski stated buying a device so people can hear.

Koloski asked - Who maintains the parking garage, there is graffiti. Got a complaint that the walking bridge has graffiti on it and it has cameras. Are cameras being maintained?

Mary- window washing out to bid. Parks have cleaned most of the graffiti. There are 32 cameras and can get back to you on statuses.

Pope good idea, feedback is the issue.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:22p.m., a motion was made by Mr. O’Hearne and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 8-0

Respectfully Submitted,

Gwendolyn R. Melcher
City Clerk